

GAHC010043382019



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Crl. Pet. 214/2019

1:UJJAL SARKAR
S/O. LT. SUKHLAL SARKAR, R/O. HOUSE NO. 12A, (RLY QTR), MODEL
COLONEY, PANDU, P.S. JALUKBARI, KAMRUP (M), GUWAHATI-12, ASSAM,
INDIA.

VERSUS

1:THE STATE OF ASSAM AND ANR.
REP. BY PP, ASSAM.

2:SMT. BAKUL SARKAR
D/O. LT. NITAI KUMAR BISWAS
R/O. HOUSE NO. 12A
(RLY QTR.)
MODEL COLONEY
PANDU
P.S. JALUKBARI
KAMRUP (M)
GUWAHATI-12
ASSAM
INDIA

Advocate for the Petitioner : MR. P BOIRAGI

Advocate for the Respondent : PP, ASSAM

BEFORE
HONOURABLE MR. JUSTICE MANISH CHOUDHURY

ORDER

Date : 13-05-2020

The petitioner in this criminal petition under Section 482, Code of Criminal Procedure, 1973 ('the Code' and/or 'the CrPC', for short) has assailed the legality and validity of an order dated 08.02.2019 passed by the Court of learned Principal Judge, No. 1, Kamrup (Metro), Guwahati in F.C.(Crl.) Case No. 231/2018.

2. To appreciate the issue raised in the case in hand, a narration of the relevant background facts, in brief, which have emerged from (a) the averments made in this petition; (b) the order dated 21.12.2018 passed in Misc.(J) Case No. 74/2018, arising out of F.C.(Civil) Case No. 191/2018; and (c) the order dated 08.02.2019 passed in F.C.(Crl.) Case No. 231/2018, appears necessary.

3. Both the cases - F.C.(Civil) Case No. 191/2018 and F.C.(Crl.) Case No. 231/2018 - are presently pending before the Court of learned Principal Judge, Family Court, No. 1, Kamrup (Metro), Guwahati ('the Family Court', for short).

4. It is not in dispute between the parties that marriage between the petitioner-husband and the respondent-wife was solemnized on 04.12.1998 according to Hindu rights and rituals and out of the said wedlock, a boy child was born to the couple on 04.09.2005.

4.1. The petitioner is presently serving as an Assistant Financial Adviser in the office of the General Manager (Construction) in the N.F. Railways at Guwahati. The petitioner has contended that disputes and differences started arising between them since October, 2016 onwards because of disrespectful attitude on the part of the respondent-wife. There was lack of understanding between them and all efforts for reconciliation had failed resulting in no chance of any reunion.

4.2. On the other hand, the respondent-wife has alleged that soon after the marriage, the petitioner started inflicting torture upon her. She is a cancer patient and has no independent source of income. For her sustenance, she is dependent upon the petitioner but he has been wilfully neglecting to provide necessary support to her.

4.3. With the allegations above, the petitioner-husband has filed a petition under Section 13 of the Hindu Marriage Act, 1955 before the learned Family Court seeking dissolution of the marriage by a decree of divorce. The said petition has been registered and numbered as F.C. (Civil) Case No. 191/2018 and the same is pending on date.

4.4. The respondent-wife in F.C.(Civil) Case No. 191/2018, had preferred an application, Misc.(J) Case No. 74/2018, under Section 24 of the Hindu Marriage Act, 1955 seeking maintenance *pendente lite* and expenses of proceedings. The Family Court after hearing the parties and after due consideration of the materials on records, had passed an order dated 21.12.2018 directing the petitioner-husband to pay an amount of Rs. 10,000/- (Rupees ten thousand) per month as maintenance *pendente lite* w.e.f. 21.12.2018 to the respondent-wife and to pay an amount of Rs. 10,000/- (Rupees ten thousand) as litigation cost. With the above direction, Misc.(J) Case No. 74/2018 was disposed of.

4.5. The respondent-wife had, in the meantime, has filed an application under Section 125 of the Code before the Family Court seeking maintenance under the said provision. The said application has been registered and numbered as F.C.(Crl.) Case No. 231/2018. The Family Court by the impugned order dated 08.02.2019 directed the petitioner-husband to pay an interim maintenance of Rs. 4,500/- per month w.e.f. 08.02.2019.

4.6. It is the order dated 08.02.2019, which is put to challenge in this criminal petition.

5. Heard Mr. J. I. Borbhuiya, learned counsel for the petitioner, Mr. B. B. Gogoi, learned Additional Public Prosecutor for the respondent no. 1, State of Assam and Mr. P. Dutta, learned counsel for the respondent no. 2.

6. Mr. Borbhuiya, learned counsel for the petitioner has submitted that as the Family Court had already passed an order for maintenance *pendente lite* on 21.12.2018 in Misc. (J) Case No. 74/2018, arising out of the divorce proceedings instituted by the petitioner-husband, directing him to pay an amount of Rs. 10,000/- per month to the respondent-wife, which the petitioner-husband is regularly paying, there could not be any occasion for the Family Court to pass an order in the proceeding in F.C.(Crl.) Case No. 231/2018 under Section 125 of the Code, instituted at a later date, making the direction to pay a further amount of Rs. 4,500/- per month. According to the petitioner-husband, grant of maintenance *pendente lite* under Section 24 of the Hindu Marriage Act 1955 and grant of interim maintenance under

Section 125, CrPC simultaneously are not sustainable in law. The petitioner is suffering from various ailments for which he has to incur a substantial amount and thus, to make a payment of Rs. 14,500/- in total will be a huge burden.

7. Per contra, Mr. Dutta has submitted that a mere perusal of the two orders i.e. the order dated 21.12.2018 and the order dated 08.02.2019 would make it evident that the contention advanced on behalf of the petitioner-husband is fallacious. The two orders are mutually exclusive and the subsequent order dated 08.02.2019 is passed after taking into consideration the purport and object behind passing of the previous order dated 21.12.2018.

8. I have considered the submissions of the learned counsel for the parties and perused the materials on record including the order dated 21.12.2018 and the order dated 08.02.2019.

9. The submission advanced on behalf of the petitioner are found not sustainable upon perusal of the above two orders, along with other materials on record.

9.1. An order passed to grant maintenance *pendente lite* and expenses of proceedings under Section 24 of the Hindu Marriage Act is not a final order passed upon final determination. Such an order can be passed in a proceeding under the said Act if it appears to the Family Court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and for the necessary expenses of the proceedings. The Family Court has the discretion, on an application filed by either the wife or the husband, to pass an order directing the respondent to pay to the applicant the expenses of the proceeding and a reasonable amount per month during the course of the proceeding, having regard to the applicant's own income and the income of the respondent. It is not the case of the petitioner-husband that the respondent-wife has any independent source of income. The petitioner-husband has himself admitted that he is serving presently in N.F. Railways. The Family Court accepting his submission that he used to receive an amount of Rs. 28,535/- per month as salary after deduction of loan amount instalments, etc., had considered an amount of Rs. 10,000/- per month to be reasonable as maintenance *pendente*

lite. Section 24 of the Hindu Marriage Act has mentioned only about the husband and the wife and it is silent about any other person including the child of the contesting husband and wife. A perusal of the order dated 21.12.2018 makes it evident that the amount granted under Section 24 of Hindu Marriage Act had not specifically included any amount for maintenance of the children. The order was specific to the extent that the amount of Rs. 10,000/- per month as maintenance *pendente lite* is meant for the respondent-wife. There was no mention of the child of the couple.

9.2. From a look at the impugned order dated 08.02.2019, it makes apparent that the respondent-wife has preferred the said application seeking maintenance for the education of their son who is living with her and is a student in Class-VII. The fact that the petitioner-husband is paying an amount of Rs. 10,000/- per month as maintenance *pendente lite* has been duly taken note of by the learned Family Court. As has been mentioned above, the child was born on 04.09.2005 and he is a minor as on date. Section 125 of the Code has provided that if any person having sufficient means neglects or refuses to maintain (a) his wife, unable to maintain herself, or (b) his legitimate or illegitimate minor child, whether married or not unable to maintain itself, or (c) his legitimate or illegitimate child (not being a married daughter) who has attained majority, where such child is, by reason of any physical or mental abnormality or injury unable to maintain itself, or (d) his father or mother, unable to maintain himself or herself, the Court may, upon proof of such neglect or refusal, order such person to make a monthly allowance for the maintenance of his wife or such child, father or mother, at such monthly rate as such Court thinks fit, and to pay the same at such intervals the Court thinks fit. Though it is submitted on behalf of the petitioner-husband here that he is bearing the expenses of the child the impugned order dated 08.02.2019 does not reflect the same. Before the Court, he had contended that though his salary was about Rs. 75,000/- per month but because of deduction he used to get an amount of 25,000/- as net salary. Pendency of a divorce proceeding under the Hindu Marriage Act does not debar a proceeding for maintenance under Section 125 of the Code nor the jurisdiction of the criminal court for the maintenance proceeding under Section 125 of the Code has been taken away due to the pendency of the matrimonial proceeding. An able-bodied man, more particularly, when he is assured of a salary must maintain his minor children. The impugned order dated 08.02.2019

had been passed granting the interim maintenance amount per month to the minor boy child of the petitioner-husband and the respondent-wife. Such an order cannot be considered to be affront to an order granting maintenance *pendente lite* to the respondent-wife in a matrimonial proceeding passed under Section 24 of the Hindu Marriage Act.

10. Resultantly, this criminal petition is found devoid of any merit. Interim order passed earlier on 05.03.2019 stands recalled. It is made clear that the petitioner-husband has to abide by the order dated 08.02.2019 passed in F.C.(Crl.) Case No. 231/2018. Towards compliance, the petitioner shall start paying the current monthly interim maintenance amount every month henceforth till disposal of F.C.(Crl.) Case No. 231/2018. It is provided that the petitioner shall deposit the arrears of monthly maintenance amount counting from 08.02.2019, within a period of 4 (four) months from today. No Cost.

JUDGE

Comparing Assistant